

IMO MSC 99 Meeting Summary

June 15, 2018

The Maritime Safety Committee (MSC) of the International Maritime Organization met for its 99th session in London during 16-25 May 2018.

Liberia actively participated in the plenary sessions and the working groups on the 'Maritime Autonomous Surface Ships' and 'Goal-based Standards' and in the Drafting Group on 'Amendments to Mandatory Instruments'.

Maritime Autonomous Surface Ships

The MSC considered the matter of Maritime Autonomous Surface Ships (MASS) and agreed to embark on a "Regulatory Scoping Exercise", the aim of which is to determine how safe, secure and environmentally sound MASS operations may be addressed through IMO instruments which fall under the purview of the MSC, such as: SOLAS, Load lines, STCW, ColRegs, Tonnage etc.

The MSC endorsed a framework for a regulatory scoping exercise as follows:

Aim

The aim of the regulatory scoping exercise is to determine how safe, secure and environmentally sound Maritime Autonomous Surface Ships (MASS) operations might be addressed in IMO instruments.

Objective

The objective of the regulatory scoping exercise on MASS conducted by the Maritime Safety Committee is to assess the degree to which the existing regulatory framework under its purview may be affected in order to address MASS operations.

Preliminary glossary

For the purpose of the regulatory scoping exercise, **Maritime Autonomous Surface Ship (MASS)** is defined as a ship which, to a varying degree, can operate independent of human interaction.

To facilitate the process of the regulatory scoping exercise, the degrees of autonomy are organized as follows:

- .1 *Ship with automated processes and decision support:* Seafarers are on board to operate and

control shipboard systems and functions. Some operations may be automated.

- .2 *Remotely controlled ship with seafarers on board:* The ship is controlled and operated from another location, but seafarers are on board.
- .3 *Remotely controlled ship without seafarers on board:* The ship is controlled and operated from another location. There are no seafarers on board.
- .4 *Fully autonomous ship:* The operating system of the ship is able to make decisions and determine actions by itself.

The above list does not represent a hierarchic order. It should be noted that MASS could be operating at one or more degrees of autonomy for the duration of a single voyage.

Methodology

As a first step, the regulatory scoping exercise will identify provisions in IMO instruments which, as currently drafted:

- .1 apply to MASS and preclude MASS operations; or
- .2 apply to MASS and do not preclude MASS operations and require no actions; or
- .3 apply to MASS and do not preclude MASS operations but may need to be amended or clarified, and/or may contain gaps; or
- .4 have no application to MASS operations.

As a second step, an analysis will be conducted to determine the most appropriate way of addressing MASS operations, taking into account, inter alia, human element, technology and operational factors, by:

- .1 equivalences as provided for by the instruments or developing interpretations; and/or
- .2 amending existing instruments; and/or
- .3 developing new instruments; or
- .4 none of the above, as a result of the analysis.

GMDSS – Recognition of Iridium and Inmarsat

The MSC agreed to recognise Iridium Satellite LLC as a mobile satellite communication service provider in the Global Maritime Distress and Safety System (GMDSS) for its Iridium Safety Voice, Short-Burst Data and Enhanced Group Calling services. A Statement of Recognition to this effect was adopted by the MSC.

The implementation of Iridium's services will be overseen and monitored by International Mobile Satellite Organization (IMSO) who will report back to the MSC once the Public Service Agreement has been concluded and their Letter of Compliance issued.

Additionally, the MSC also adopted a Statement of Recognition of the services provided by Inmarsat Global Ltd, for use in the GMDSS. The statement recognizes services provided by the Inmarsat Fleet Safety service, in the coverage area under the Inmarsat-4 Middle East and Asia (MEAS) region satellite.

New Ships' Routing Measures

The MSC adopted the following new measures, with an implementation date on 1 December 2018, unless otherwise stated:

- Traffic separation scheme in Dangan Channel (China).
- Traffic separation scheme in the vicinity of Kattegat (Denmark / Sweden). Implementation date: 1 July 2020.
- Precautionary area in Dangan Channel No. 2 (China) with recommended directions of traffic flow.
- Deep water routes, recommended routes and precautionary area in the vicinity of Kattegat. Implementation date: 1 July 2020.
- Amended areas to be avoided off the coast of Ghana in the Atlantic Ocean.
- Two-way routes, precautionary areas and areas to be avoided in the Bering Sea and Bering Strait.

Goal Based Standards (GBS)

In order to finalise its work on the GBS Verification Guidelines, the MSC focused on the unresolved procedures surrounding for the maintenance of verification audits. Although it was agreed that the three-year cycle of maintenance audits is sufficient it was considered necessary to maintain the reporting of annual rule changes by the Recognised Organisations (RO) to the MSC and Administrations. To that end it was agreed to

develop Qualitative Criteria (Categories 1, 2 and 3) as the basis for conducting audits: Category 1 relates to corrigenda and follow-up changes, where no audit would be requested by the RO; Category 2 would include minor changes where an audit may be required and category 3 is a major change requiring an audit. When considering the annual changes report, the audit team may deem it necessary to undertake an audit of category 1 changes. The MSC approved a draft resolution on the revised guidelines for the verification of conformity with GBS construction standards for bulk carriers and oil tankers, with a view to adoption at MSC 100.

The MSC also finalised its work on the GBS Safety Level Approach (GBS SLA) by amalgamating Sections 13 and 14 of the draft guidelines. Additionally, the "As Low As Reasonably Practicable" (ALARP) principle was incorporated into the Guidelines to close the gap between the point at which the risk was ALARP and the point at which the risk was intolerable. A draft MSC Circular on the Interim Guidelines for development and application of IMO GBS SLA was approved with a view to adoption at MSC 100.

Polar Code for Non-SOLAS Vessels

Further to the entry into force of the International Code for Ships Operating in Polar Waters (Polar Code) in 2017, the MSC agreed to consider the application of Polar Code's safety measures to vessels not currently covered by SOLAS. In particular, the MSC agreed to consider: fishing vessels of 24m or over in length; pleasure yachts not engaged in trade of over 300GT; and cargo ships from 300GT up to 500GT.

In order to progress this work, the MSC agreed to task the Ship Design and Construction (SDC) sub-Committee to develop recommendatory safety measures for fishing vessels (in order to align with the Cape Town Agreement) and pleasure yachts but not to include non-SOLAS cargo ships for now. MSC 100 will further develop mandatory and recommendatory safety measures as appropriate and determine the extent of the involvement of the Navigation, Communications and Search and Rescue (NCSR) sub-Committee.

Piracy and Maritime Security

The MSC noted that 2017 saw the lowest numbers of Incidents of piracy and armed robbery being reported in two decades. MSC further noted that Somalia based

piracy had been suppressed, but not eradicated. The number of incidents reported for the Gulf of Guinea decreased last year to 48 incidents recorded in the IMO GISIS database, against 62 in 2016. However, in the first four months of 2018, the number of incidents significantly increased in the region, with 37 incidents reported, some resulting in the hijacking of ships and holding of crew members for ransom. On a more positive note, naval forces in the region were showing an increased appetite and capability to intervene in such incidents. It was further noted that in response to increasing incidents from threats arising from the conflict in Yemen, interim guidance on maritime security in the southern Red Sea and Bab al-Mandeb has been published by the Combined Maritime Forces (CMF), ICS, BIMCO and INTERTANKO and is available on the IMO website (www.imo.org).

It was agreed to discontinue monthly circulars containing reports on incidents of piracy and armed robbery against ships given the availability of such information and statistics in GISIS.

Amendments to Mandatory Instruments

The MSC agreed to amendments to the following mandatory instruments.

1974 SOLAS Convention

- Regulations II-1/1 & II-1/8-1 of SOLAS - allowing for computerised stability support for the master in case of flooding for existing passenger ships. The amendments are expected to enter into force on 1 January 2020.
- Chapter IV of SOLAS (Radiocommunications) – References to “Inmarsat” replaced with “Recognised Mobile Satellite Service” and consequential amendments to the International Code of Safety for High speed Craft, 1994 (1994 HSC Code), the International Code of Safety for High-speed Craft, 2000 (2000 HSC Code) and the Code of Safety for Special Purpose Ships, 2008 (2008 SPS Code). The amendments are expected to enter into force on 1 January 2020.
- 2010 FTP Code – new provisions for fire protection material and approval test methods on passenger ships and high-speed craft. The amendments are expected to enter into force on 1 January 2020.
- IMDG Code – includes new provisions for Type 9 tanks, the carriage of lithium batteries and vehicles powered by flammable liquid or gas, new abbreviations for segregation groups. The

amendments are expected to enter into force on 1 January 2020. Administrations may voluntarily adopt these amendments from 1 January 2019.

- Model forms of Certificate of Fitness in various Codes Amendments to the model forms of the Certificates of Fitness, clarifying the requirement for an approved loading and stability manual/booklet to be supplied to the ship, under the International Code for the Construction and Equipment of Ships Carrying Dangerous Chemicals in Bulk (IBC Code), International Code for the Construction and Equipment of Ships Carrying Liquefied Gases in Bulk (IGC Code), Code for the Construction and Equipment of Ships Carrying Dangerous Chemicals in Bulk (BCH Code), Code for Existing Ships Carrying Liquefied Gases in Bulk (EGC Code), and the Code for the Construction and Equipment of Ships Carrying Liquefied Gases in Bulk (GC Code). The amendments are expected to enter into force or take effect, as appropriate, on 1 January 2020.

Details of the amendments can be found in the relevant MSC resolutions, a list of which can be found at the end of this bulletin. Copies of all MSC resolutions may be found on the IMO public website, follow the links to the Knowledge Centre and Index of IMO Resolutions (www.imo.org/en/KnowledgeCentre/IndexofIMOResolutions).

The next meeting of the MSC 100 is scheduled for: 03-07 December 2018.

For further information please contact: imo@liscr.com

PROVISIONAL LIST OF RESOLUTIONS & CIRCULARS APPROVED BY MSC 99

MEPC.304(72)	Initial IMO Strategy on Reduction of GHG Emissions from Ships
MEPC.296(72)	Amendments to the International Convention for the Control and Management OF Ships' Ballast Water and Sediments, 2004 – Amendments to regulations A-1 and D-3 (Code for Approval of Ballast Water Management Systems (BWMS Code))
MEPC.297(72)	Amendments to the International Convention for the Control and Management of Ships' Ballast Water and Sediments, 2004 – Amendments to regulation B-3, (Implementation schedule of ballast water management for ships)
MEPC.298(72)	Determination of the survey referred to in regulation B-3, as amended, of the BWM Convention
MEPC.299(72)	Amendments to the International Convention for the Control and Management of Ships' Ballast Water and Sediments, 2004 – Amendments to regulations E-1 and E-5, (Endorsements of additional surveys on the International Ballast Water Management Certificate)
MEPC.300(72)	Code for approval of Ballast Water Management Systems (BWMS code)
MEPC.301(72)	Amendments to MARPOL Annex VI, (ECAs and required EEDI for ro-ro cargo ships and ro-ro passenger ships)
MEPC.302(72)	Amendments to the International Code for the Construction and Equipment of Ships Carrying Dangerous Chemicals in Bulk (IBC CODE) – (Model form of International Certificate of Fitness for the Carriage of Dangerous Chemicals in Bulk)
MEPC.303(72)	Amendments to the Code for the Construction and Equipment of Ships Carrying Dangerous Chemicals in Bulk (BCH CODE) – (Model form of Certificate of Fitness for the Carriage of Dangerous Chemicals in Bulk)
MEPC.1/Circ.875	Guidance on best practice for fuel oil purchasers/users for assuring the quality of fuel oil used on board ships
MEPC.1/Circ.876	Sample format for the confirmation of compliance, early submission of the SEEMP Part II on the ship fuel oil consumption data collection plan and its timely verification pursuant to regulation 5.4.5 of MARPOL Annex VI
BWM.2/Circ.66	Unified Interpretation of Appendix I (Form of the International Ballast Water Management Certificate) of the BWM Convention, Appendix I – Form of the International Ballast Water Management Certificate, "Date installed" in relation to "Method of ballast water management used"
BWM.2/Circ.67	Data gathering and analysis plan for the experience-building phase associated with the BWM Convention
BWM.2/Circ.33/Rev.1	Guidance on scaling of ballast water management systems
BWM.2/Circ.43/Rev.1	Guidance for Administrations on the type approval process for ballast water management systems
Circular Letter 3837	Amendments to MARPOL Annex VI
MSC.1/Circ.1500/Rev.1	Guidance on drafting of amendments to the 1974 SOLAS Convention and related mandatory instruments

MSC.1/Circ.1532/Rev.1	Amendments to the revised guidelines on operational information for masters of passenger ships for safe return to port (MSC.1/Circ.1532)
MSC.1/Circ.1587	Procedural aspects related to the drafting of amendments to safety-related IMO Conventions, other than the 1974 SOLAS Convention, and related mandatory instruments
MSC.1/Circ.1588	Revised emergency response procedures for ships carrying dangerous goods (EmS Guide)
MSC.1/Circ.1589	Guidelines on operational information for masters in case of flooding for passenger ships constructed before 1 January 2014
MSC.1/Circ.1590	Unified interpretation of paragraph 13.3.5 of the IGC Code (as amended by resolution MSC.370(93))
MSC.1/Circ.1591	Unified interpretations of the IGF Code
MSC.1/Circ.1592	Guidelines for wing-in-ground craft
MSC.1/Circ.1593	Interim guidelines for the harmonized display of navigation information received via communication equipment
MSC.1/Circ.1594	Amendments to the International Aeronautical and Maritime Search and Rescue (IAMSAR) Manual
MSC.1/Circ.1595	E-Navigation Strategy Implementation Plan – Update 1
MSC-MEPC.1/Circ.5/Rev.1	Organization and method of work of the Maritime Safety Msc and the Marine Environment Protection Msc and their subsidiary bodies
CCC.1/Circ.2/Rev.1	Carriage of Bauxite which may liquefy
CCC.1/Circ.4	Carriage of ammonium nitrate based fertilizer (non-hazardous)
COLREG.2/Circ.71	New traffic separation schemes
SN.1/Circ.336	Routeing measures other than traffic separation scheme